

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

WRIT PETITION NO. 8339 OF 2016

IN THE MATTER OF

An application under Article 102 of
the Constitution of the People's
Republic of Bangladesh

-AND-

IN THE MATTER OF:

M/S Julfikar Fashions Ltd

... Petitioner

-Versus-

Bangladesh Bank and others

... Respondents

No one appears

.....For the petitioner

No one appears

..... For the respondents

The 07th day of December, 2023

Present:

Mr. Justice J.B.M. Hassan

and

Mr. Justice Razik-Al-Jalil

J.B.M. Hassan, J:

This Rule Nisi was issued in the following terms:

“Let a Rule Nisi be issued calling upon the respondents to show cause as to why the unlawful and arbitrary action of the respondents attempting to make payment to the beneficiary against the discrepant documents under the Letter of Credit (L/C) (Annexure-B), in violation of the Article 16(c) and (g) of the UCP for documentary Credit 2007 Revision ICC Publication No. 600, should not be declared to be without lawful authority and is of no legal effect and as to why the respondents should not be directed to comply with the Article

16 and the notice of discrepant document under Article 16(C) iii(d) (Annexure-D) of the UCP for Documentary Credit 2007 Revision ICC Publication No. 600 in compliance to the terms of the letter of credit (L/C) (Annexure-B) and/or pass such other or further order or orders as to this Court may seem fit and proper.”

None appears either for the petitioner or the respondents when the matter is taken up for hearing.

It appears from the record that the petitioner sought a remedy against a private bank in respect of payment against the Letter of Credit (LC).

From the correspondences and other materials on record, it further appears that the subject matters are all disputed questions of facts and cannot be adjudicated under writ jurisdiction.

In view of the above, the Rule Nisi is discharged without any order as to costs.

Communicate a copy of the judgment and order to the respondents at once.

Razik-Al-Jalil, J:

I agree.